

Westhampton Agricultural Commission

Minutes of meeting August 20, 2026 at the Town Hall

Called to order at 7:03 PM

Present: Steve Holt, Austin Norris, Joe Pipczynski and Rick Tracy.

Attached list of others in attendance.

-Reviewed minutes from 7/15/26. Moved by A. Norris and 2<sup>nd</sup> by R. Tracy to accept as printed. So voted.

-Continued discussion of chicken manure.

R. Tracy stated after reviewing the Right to Farm bylaw, 330CMR31.0 and Chapter 11 Sec. 125A he thought spreading chicken manure was an acceptable agricultural activity.

S. Holt had spoken with a representative from Henshaw Well Drilling that any properly installed artesian well since the 1970s would be sealed to keep out any leaching from ground water.

- Point of order made that the parcel in question is now owned by Bauer not Desantis as had been mistakenly stated. J. Shaw also reminded the commission to state any sources being referenced.

K. Norris read from a portion of the Westhampton Right to Farm bylaw pertaining to farm activity. Found in Section 16 of Bylaws of Westhampton. Also presented to commission copies of:

Massachusetts Nutrient Management Regulations

UMASS Guidelines for manure application

Westhampton Right to Farm bylaw

Also noted that chicken manure stinks but we should be able to work out neighbors concerns without involving Town Hall.

S. Cowley noted he had presented portions from the same material at our last meeting. He had also looked into private well concerns and learned that that is a Board of Health issue and Westhampton seems to mirror Williamsburg rules with similar issues.

C. Dunn noted he thought any contamination is more likely from the homeowner leach field.

M. Stacey asked if it really was a normal agricultural activity to dump a pile of manure for a period of time. S. Cowley noted this is called field stacking and is listed in the guidelines.

M. Stacey raised more concerns about the water overlay and any long term affects. L. Fountain noted the overlay on this property shows all runoff going to the Manhan River.

S. Holt after a quick look at the Masss. manure guidelines it states that applications of manure between cuts of hay makes good use of manure nutrients. J. Shaw noted the Right to Farm bylaw doesn't mention timing of manure application and cautioned about wording that might be limiting. J. Kahane still has concerns about wells and stated pollutants can transfer through the air. Is this a problem? Asked if deliveries could be done in sections. ( Cowley noted it is not practical to dump elsewhere and spread piecemeal.) The degree of nuisance depends on proximity. The odor was an issue for over a week. ( There was a vague reference to previous applications.) He feels the regulations are complicated. Is this legal and is it going to harm anyone? Honesty has been an issue before. Who is going to monitor this and will the regulation be adhered to?

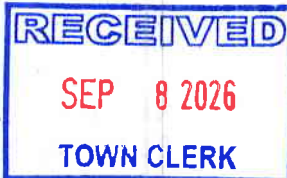
- A. Norris noted the original complaint came to the Selectboard. Feels we've covered this. Is there any more to debate?

- J. Shaw noted general bylaw enforcement falls to the Police Dept. but there are no fines involved . Any change to this policy would need town Meeting vote.

J. Kahane If state laws not followed? Considerations.

9-3-26

OK



-K.Norris Spreading manure is a normal practice guided by the UMASS guidelines and soil testing. Following nutrient management regulations falls to MDAR which is spread pretty thin. The intent is to not be overloading your land with extra nutrients.

S. Holt Right to Farm is a guide for best practices from the state.

J. Shaw You've reached a point of decision.

M. Stacey It's not just a right to farm issue. It's a bigger issue especially water.

K. Norris How long was it a major problem for the abutters? Stacey- 7 days strong dissipating after spreading. Kahane- more than a week. ( 2<sup>nd</sup> reference to previous application.)

L. Fountain noted this is the first time they have done this. In future will dump further from the public road. Just trying to bring the land back to good production.

J. Pipczynski How often get a delivery? Cowley Once a year during the growing season. This is his first year farming this land.

K. Fountain was present when HWW representative came out and he had no problem with the location or the amount.

M. Stacey stated he was contacted by the HWW saying it was a problem but they couldn't deal with it now.

J. Pipczynski As former water resources manager if there was a problem there would be no delay.

C. Dunn works for Deerfield Water Department. They have fields near feeder streams in their system and have no problems with manure applications.

S. Holt How do the members feel? The activity in question seems to be within the acceptable standards.

J. Pipczynski Doesn't see a problem. No excess was applied.

R. Tracy Agree. They are following acceptable practices.

A. Norris Agree.

Moved by A.Norris and 2<sup>nd</sup> by J. Pipczynski that we recommend to the Selectboard that the activity in question is within the regulations and is a normal agricultural activity covered by the Right to Farm bylaw. So voted 4-0.

Next meeting tentatively September 3, 2026.

Moved by Tracy and 2<sup>nd</sup> by Holt to adjourn. So voted. Adjourned 8:00 PM

Respectfully submitted,

Richard I. Tracy